

Venue Data Processing Agreement

Effective Date: May 19, 2026 | Entity: Confetti App, LLC

1. Definitions

- **Controller:** Confetti App, LLC (determines purposes and means of processing)
- **Processor:** Venue Partner (processes data on behalf of Controller)
- **Personal Data:** Any information relating to an identified or identifiable person
- **Processing:** Any operation performed on Personal Data

2. Scope of Processing

Data Subjects

- Confetti users who interact with the Venue through the platform
- Venue staff whose contact information is provided for partnership management

Types of Personal Data

- User first name (for reservations)
- Reservation date/time, party size, special requests
- Referral source identifier (anonymized)

Purpose Limitation

Data is processed solely for: fulfilling reservations, providing agreed services, and communicating about active bookings. Venue shall NOT use data for independent marketing without user consent.

3. Venue Obligations (as Processor)

- Process data only on documented instructions from Confetti
- Ensure staff with access are bound by confidentiality
- Implement appropriate technical and organizational security measures
- Not engage sub-processors without prior written consent
- Assist Confetti in responding to data subject rights requests within 5 business days
- Assist with DPIA where required
- Delete or return all Personal Data upon termination

4. Confetti Obligations (as Controller)

- Provide clear processing instructions
- Ensure lawful basis for data sharing
- Respond to Venue queries about processing requirements

- Conduct periodic compliance reviews

5. Breach Notification

Venue must notify Confetti of any confirmed or suspected data breach within **24 hours**. Notification must include: nature of breach, categories and approximate number of data subjects affected, likely consequences, and measures taken or proposed.

6. Data Transfers

Venue shall not transfer Personal Data outside the country of collection without prior written consent from Confetti and appropriate safeguards (Standard Contractual Clauses or equivalent).

7. Audit Rights

Confetti may audit Venue's compliance with this Agreement upon 30 days' written notice, no more than once per year. SOC 2 Type II or ISO 27001 certification may be accepted in lieu of on-site audit.

8. Retention & Deletion

- Active reservation data: Duration of reservation + 30 days
- Completed reservation records: 12 months for dispute resolution
- All Personal Data deleted within 30 days of Agreement termination
- Venue must certify deletion in writing upon request

9. Liability

Venue shall indemnify Confetti for any losses arising from Venue's breach of this Agreement or applicable data protection law.

10. Term

This Agreement runs concurrent with the Venue Partnership Agreement (Document 11) and survives termination until all Personal Data is deleted.

11. Governing Law

District of Columbia.

SIGNATURES

CONTROLLER: Confetti App, LLC

PROCESSOR (Venue)

Authorized Representative (Print Name)

Business Name

Title

Authorized Representative (Print Name)

Signature

Title

Date

Signature

Date

This document may be executed electronically. Electronic signatures shall have the same legal force and effect as original signatures under the U.S. E-SIGN Act (15 U.S.C. § 7001) and the Uniform Electronic Transactions Act (UETA).
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